

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK-----X
JAMES MOORE,

Plaintiff,

-against-

SUMMONS

Index #

The basis of venue is:

Plaintiff designates New
York County as the place of
trial.

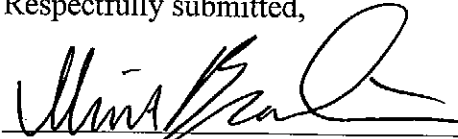
THE CITY OF NEW YORK, DETECTIVE LEONID
PYSIN (SHIELD # 7845), DETECTIVE RICHARD
ALVAREZ (SHIELD # 1415), DETECTIVE WILLIE
ARTILES (SHIELD # 774), DETECTIVE JUAN
INFANTE (SHIELD # 6495), NEW YORK CITY
POLICE OFFICER JOHN DOE #1, and POLICE
OFFICERS JOHN DOES #2-4 (names and numbers
of who is unknown at present), and other unidentified
members of the New York City Police Department.

Defendants.
-----X**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 24, 2015

Respectfully submitted,



ILISSA BROWNSTEIN, ESQ.

Attorney for Plaintiff

65 Broadway

7th Floor

New York, New York 10006

(212) 691-3333

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

Detective Leonid Pysin (Shield # 7845)
Narcotics Boro Manhattan North

Detective Richard Alvarez (Shield # 1415)
Narcotics Boro Manhattan North

Detective Willie Artiles (Shield # 774)
Narcotics Boro Manhattan North

Detective Juan Infante (Shield # 6495)
Narcotics Boro Manhattan North

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
JAMES MOORE,

VERIFIED COMPLAINT

Plaintiffs,

Index #

-against-

THE CITY OF NEW YORK, DETECTIVE LEONID
PYSIN (SHIELD # 7845), DETECTIVE RICHARD
ALVAREZ (SHIELD # 1415), DETECTIVE WILLIE
ARTILES (SHIELD # 774), DETECTIVE JUAN
INFANTE (SHIELD # 6495), NEW YORK CITY
POLICE OFFICER JOHN DOE #1, and POLICE
OFFICERS JOHN DOES #2-4 (names and numbers
of who is unknown at present), and other unidentified
members of the New York City Police Department.

Defendants.
-----X

Plaintiff **James Moore**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiff James Moore is a citizen of the United States and a resident of New York, New York.
3. Detective Leonid Pysin (Shield # 7845) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. Detective Leonid Pysin (Shield # 7845) is being sued in his individual capacity and official capacity.
5. Detective Richard Alvarez (Shield # 1415) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Detective Richard Alvarez (Shield # 1415) is being sued in his individual capacity and official capacity.
7. Detective Willie Artiles (Shield # 774) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Detective Willie Artiles (Shield # 774) is being sued in his individual capacity and official capacity.
9. Detective Juan Infante (Shield # 6495) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. Detective Juan Infante (Shield # 6495) is being sued in his individual capacity and official capacity.
11. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
12. New York City Police Officers John Does #1-4 are being sued in their individual capacities and official capacities.
13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
15. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
17. No 50-h hearing was conducted because plaintiff has been incarcerated and a stipulation has been signed notifying the comptrollers' office of his incarceration.

STATEMENT OF FACTS

1. James Moore is 33 years old.
2. Before he was incarcerated, he was employed at Workmen's Circle which is a subcontractor for urban buildings that helps rebuilds brownstones.
3. He has an Office Associates Degree.
4. He has a Boiler & Sprinklers license and a Building Maintenance Certificate.
5. On November 26, 2013, Mr. Moore went to the grocery store with his uncle.
6. Upon returning to their apartment building, Plaintiff's sister and her boyfriend arrived at the same time. Plaintiff's uncle took the grocery bags and went inside the apartment building while the Plaintiff waited for his sister to help with her bags.
7. Plaintiff proceeded to go inside the apartment building with his sister and sister's boyfriend behind him.
8. Two men with skully's and hoodies came up behind them and pushed Plaintiff's sister who was then pushed into the Plaintiff.
9. Plaintiff did not know these two men were police officers at the time.
10. The two New York City police officers tried to grab Mr. Moore's arms and one police officer slammed Mr. Moore onto the floor.
11. One of the police officers drew his handgun and pointed it to Mr. Moore's face.
12. The two police officers began hitting and kicking Mr. Moore.
13. The handgun split Mr. Moore's eye while he was being attacked by the two officers.
14. Mr. Moore's sister recorded the whole incident.
15. Plaintiff was held in jail for 2 days before bail was made.
16. Plaintiff's cell phone and \$550 was seized from him.

17. Plaintiff suffered the following injuries: a bleeding eye from the handgun, a busted lip, and a swollen face all of which required medical attention due to injuries caused by the two NYPD police officers.
18. Plaintiff missed 3 days of work as a result of his arrest and injuries.
19. Plaintiff filed a notice of claim.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

20. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 19 with the same force and effect as if more fully set forth at length herein.
21. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiff to be imprisoned without probable cause, maliciously prosecuted, and subjected to excessive force as well as an unlawful abusive search in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

22. Plaintiff repeats and alleges paragraphs 1 through 21 as if fully set forth herein.
23. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
24. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
25. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

26. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.
27. The acts and conduct of the defendants constitute malicious prosecution under the Fourth Amendment to the United States Constitution.
28. Defendants commenced and continued a criminal proceeding against plaintiff.
29. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
30. The prosecution and criminal proceedings terminated favorably to plaintiff on July 14, 2014.
31. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
32. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

ASSAULT

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. Defendants their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.
35. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

36. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

BATTERY

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. Defendants their agents, servants, and employees, acting within the scope of his employment, intentionally, willfully, and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to plaintiff and caused such battery.
39. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
40. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SEVENTH CAUSE OF ACTION

FAILURE TO INTERVENE

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
45. Defendants failed to intervene to prevent the unlawful conduct described herein.
46. As a result of the foregoing, plaintiff was physically assaulted.
47. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
48. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

NEGLIGENCE

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. Defendants owed a duty of care to plaintiff.
51. Defendants breached that duty of care by assaulting plaintiff.
52. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
53. All of the foregoing occurred without any fault by plaintiff.
54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.
56. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous

conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

57. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
58. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

TENTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
60. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
61. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
62. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
63. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
64. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.

65. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, JAMES MOORE, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
January 24, 2015

Respectfully submitted:

By: 
ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway
7th Floor
New York, New York 10006
(212) 691-3333

TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

Detective Leonid Pysin (Shield # 7845)
Narcotics Boro Manhattan North

Detective Richard Alvarez (Shield # 1415)
Narcotics Boro Manhattan North

Detective Willie Artiles (Shield # 774)
Narcotics Boro Manhattan North

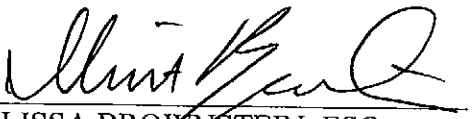
Detective Juan Infante (Shield # 6495)
Narcotics Boro Manhattan North

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are started to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county where in I maintain my office.

DATED: New York, New York
January 24, 2015



ILISSA BROWNSTEIN, ESQ.